ORDINANCE NO. 2024-582

AN ORDINANCE CREATING AND ESTABLISHING A MUNICIPAL AIRPORT COMMISSION WITHIN THE CITY OF RECTOR, ARKANSAS, AND FOR OTHER PURPOSES AND DECLARING AN EMERGENCY.

WHEREAS, search has been made of the City of Rector Ordinances and it appears that there has not been established an Airport Commission for the City of Rector, (the "Airport Commission"); and

WHEREAS, the Rector City Council has determined it is in the best interest of the City to create the Airport Commission.

THEREFORE, be it ordained by the City Council of Rector, Arkansas as follows:

SECTION 1. The Rector Municipal Airport Commission is hereby created with the following regulations.

I. Purpose. The purpose of the Airport Board shall be as follows:

a. to seek both general and technical citizen input and assistance in Airport functions.

b. to provide and encourage visionary planning and strong leadership for the Airport.

c. to assist the City Council in matters pertaining to the operation, improvement, extension and maintenance of the Airport and other related facilities, property and easements.

d. the Airport Board shall not be considered ~~or considered~~ or construed to be the creation of a commission under state statute regarding the creation of autonomous committees or commissions.

II. Authority.

All decisions of such Board are subject to final consideration by the City Council or Mayor as appropriate or required by resolution, ordinance or statute. Provided, however, it is the intention of the City Council that all items within the scope of authority of the Airport Board be submitted to said Airport Board for consideration and recommendation prior to submission to the City Council for those matters which require Council action except in the case of clear and present danger to the public health and safety. The Commission shall not have the ability to bind the City of Rector for any liens, indebtedness, or other types of security or pledging of any collateral of the City of Rector.

SECTION 2. That the City of Rector City Council shall retain all authority and power to operate and maintain the Rector Airport.

SECTION 3. That the Commission shall be appointed by the Mayor of the City of Rector and approved by the City Council. The Five Member Commission shall serve as follows in five year terms, with each appointment being staggered each year, so as to have continuity on the Commission.

a. Compensation. The Airport Board members shall serve without compensation. However, such reasonable expenses which are incurred as a direct result of a member's serving on the Airport Board shall be paid in accordance with the City's travel and training reimbursement policy. Any such

expenses must be approved by the Mayor prior to being incurred. Local travel to and from meetings is not an eligible expense for reimbursement.

SECTION 4. The Commissioners shall have regular meetings at their discretion and at the first meeting shall vote and appoint a chairperson and secretary. The secretary shall be bonded as the Commissioners may require.

SECTION 5. All current members of the commission are eligible for reappointment and nothing within this Ordinance or it's amendments shall cause to prevent current members from being reappointed.

SECTION 6. Conflict of Interest. No member of the Airport Board shall be directly or indirectly personally interested in any contract to which the Airport is a party, with the exception of hangar contracts.

SECTION 7. Removal. Any Airport Board member appointed may be removed at any time by a majority vote of the City Council.

SECTION 8. The Airport Board shall have the following duties:

a. Airport Matters. Initiate, hear and consider referred matters pertaining to the operation, improvement, extension and maintenance of the Airport and other related facilities, property and easements, initiated by the general public, the City Council or the city staff.

b. Recommendations. Make recommendations to the City Council in accord with the responsibilities of the Airport Board.

c. Advise and Assist. Advise the Mayor regarding key airport staff including recruitment, selection and termination of the Airport Manager and assist the Mayor in development of the job description of the Airport Manager and other key airport staff.

d. Reports. The Airport Board shall cause the following reports to be prepared

1. Those reports requested by the City Council and/or the Mayor.

2. An annual report, to be presented to the City Council, on the progress of the management, operation, facilities, and improvements of the Airport and related properties.

SECTION 9. Policies and Procedures. The Airport Board shall promulgate such policies and procedures as are necessary to carry out the duties of the Airport Board.

SECTION 10. Limitations of Authority. The authority of the Airport Board is expressly limited to the specific responsibilities and duties contained herein and nothing herein shall be construed or interpreted to:

a. Grant the Airport Board authority over the operation of any department, division, office, officer, or employee of the City except as may be requested by the Mayor or City Council in special circumstances.

b. Diminish the authority of the City Council over funding, operations, fixed assets, indebtedness, budget, and other areas as applicable under Arkansas law.

c. Diminish the responsibility of the Mayor in resolving conflicts which may arise over what specific items may be within the scope of authority of the Airport Board.

Emergency Clause. It is found by the City Council that time is of the essence with respect to this ordinance, and the authorities and directives it contains, due to the need for the Airport Board to operate and to have a full complement of members. An emergency is declared to exist, and this resolution being immediately necessary for the preservation of the public peace, health, and safety shall become effective on the date of its passage.

ADOPTED, this 6th day of May, 2024.

CITY OF RECTOR, ARKANSAS

Mayor

ATTEST:

City Clerk